

**CHAPTER xxix.**

An Act to authorise the Farnham Gas and Electricity Company to raise additional capital to confer further powers upon that company and for other purposes. [27th June 1940.]

WHEREAS the Farnham Gas and Electricity Company (in this Act referred to as "the Company") were incorporated by the Farnham Gas and Electricity Act 1910 and by that Act and subsequent enactments are empowered to supply gas and electricity within certain limits in the counties of Southampton Surrey and West Sussex mentioned therein : 10 Edw. 7.
& 1 Geo. 5.
c. xii.

And whereas a statement of the authorised and paid up capital of the Company is set forth in the First Schedule to this Act and it is expedient that the Company should be authorised to raise additional capital for the purposes of their undertakings and should have other financial powers conferred upon them as provided by this Act :

And whereas the County of Southampton Review Order 1932 the Surrey Review Order 1933 and the West Sussex Review Order 1933 made by the Minister of Health in pursuance of section 46 of the Local Government Act 1929 altered various local government areas in the counties of Southampton Surrey and West Sussex respectively and it is expedient that the respective limits for the supply of gas and electricity by the 19 & 20
Geo. 5.
c. 17.

Company and of the differential price areas should be re-defined :

And whereas it is expedient that such further powers should be conferred upon the Company and that such other provisions should be made as are contained in this Act :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Farnham Gas and Electricity Act 1940 and the Farnham Gas Acts and Orders 1910 to 1935 the Farnham Electricity Acts and Orders 1910 to 1929 and this Act may be cited together as the Farnham Gas and Electricity Acts and Orders 1910 to 1940.

(2) The Farnham Gas Acts and Orders 1910 to 1935 and so much of this Act as relates to the gas undertaking may be cited together as the Farnham Gas Acts and Orders 1910 to 1940.

(3) The Farnham Electricity Acts and Orders 1910 to 1929 and so much of this Act as relates to the electricity undertaking may be cited together as the Farnham Electricity Acts and Orders 1910 to 1940.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Finance.

Part III.—Gas.

Part IV.—Electricity.

Part V.—Gas and electricity.

Part VI.—Administrative.

Part VII.—Miscellaneous.

3. This Act shall be deemed to be a special Act within the meaning of the Electricity (Supply) Acts 1882 to 1936 and the Electric Lighting (Clauses) Act 1899 so far as the provisions of those Acts are applicable to the purposes of this Act.

Applica-
tion of
Electricity
(Supply)
Acts.
62 & 63
Vict. c. 19.

4.—(1) The following enactments so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of the Farnham Gas and Electricity Acts and Orders 1910 to 1940 are hereby incorporated with this Act (namely):—

Incorpora-
tion of
Acts.

(a) The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital;

8 & 9 Vict.
c. 16.

(b) Part II (relating to additional capital) except the provisions thereof which limit the rate of dividend on preference capital and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts;

26 & 27
Vict. c. 118.

(c) The Gasworks Clauses Act 1847 and the Gasworks Clauses Act 1871 as respectively amended by the Gas Undertakings Act 1934; and

10 & 11
Vict. c. 15.
34 & 35
Vict. c. 41.
24 & 25

(d) The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking.

Geo. 5.
c. 28.

(2) In the application to the Company of Part III of the Companies Clauses Act 1863 section 22 shall be read as if the words “and to the same amount as” were omitted therefrom.

(3) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 relating to the sale of superfluous lands shall not apply to any land which is now vested in the Company or is hereafter acquired by them.

8 & 9 Vict.
c. 18.

5. In this Act and in the schedules thereto unless there be something in the subject or context repugnant to such construction the several words and expressions

Interpre-
tation.

PART I.
—cont.

to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

“The Company” means the Farnham Gas and Electricity Company;

“The Act of 1910” means the Farnham Gas and Electricity Act 1910;

“The Act of 1927” means the Farnham Gas and Electricity Act 1927;

“The gas undertaking” means the gas undertaking of the Company as from time to time authorised;

“The electricity undertaking” means the electricity undertaking of the Company as from time to time authorised;

“The undertaking” means the gas undertaking and the electricity undertaking;

“The gas limits” means the limits within which the Company are from time to time authorised to supply gas;

“The electricity limits” means the limits within which the Company are from time to time authorised to supply electricity;

“Gas consumer” means any consumer of gas supplied by the Company within the gas limits;

“Electricity consumer” means any consumer of electricity supplied by the Company within the electricity limits;

“Employee” means any workman servant or officer employed by the Company in connection with the undertaking but does not include a director other than a managing director; and

“Share capital” includes stock not being debenture stock.

PART II.

FINANCE.

Additional
capital.

6. The Company may from time to time raise by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly

by one or more of those modes respectively additional capital to such amount as shall be sufficient to produce after taking into account any premiums or discounts which may be obtained or allowed as the case may be on any such issue the sum of one hundred and eighty thousand pounds and any sum so raised may be applied to the purposes of the gas undertaking or of the electricity undertaking as the directors may determine.

PART II.
—cont.

7. The additional capital authorised by this Act shall form part of the general capital of the Company and save as is otherwise by this Act provided the holders thereof respectively in proportion to the amount of their holding shall be entitled and subject to the like rights of voting and any other rights qualifications privileges and liabilities as holders of share capital of the Company of the same class or description.

Additional
capital to
be part of
general
capital.

8.—(1) Subject to the provisions of this Act and of the Gas Undertakings Act 1934 all share capital issued by the Company after the passing of this Act shall be issued in accordance with the provisions of this section.

Sale of
share
capital by
auction or
tender.

(2) All share capital so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine :

Provided as follows :—

(a) Notice of the intended sale shall be given in writing to the clerk of the county council of the administrative county of Surrey and to the clerk to the council of every district wholly or partly within the gas limits and the electricity limits and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspaper or newspapers circulating within the gas limits and the electricity limits ;

(b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of

PART II.
—cont.

Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the reception of tenders as the case may be;

- (c) In the case of a sale by auction no lot offered for sale shall comprise share capital of greater nominal value than one hundred pounds and a bid (other than the first bid) shall not be recognised unless it is in advance of the last preceding bid;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer of any holder of share capital of the Company may be accepted in preference to the offer of the same sum by any person not such a holder and preference may in like manner be given to the offer of any employee or of any gas consumer or electricity consumer;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any share capital which has been so offered for sale and is not sold may be offered at the reserve price to the holders of share capital of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to employees and to gas consumers and electricity consumers in such proportions as the directors may think fit or to one or more of those classes of persons only:

Provided that in the case of an offer to holders of share capital if the aggregate amount of any class of share capital applied for shall exceed the amount thereof so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any share capital which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold may be disposed of for the purpose of realising the best

price obtainable at such price and in such manner as the directors may determine.

PART II.
—cont.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of share capital sold the total amount (if any) obtained as premium or allowed as discount in each case and the highest and lowest price obtained for each class of share capital.

9. Notwithstanding anything in any Act or Order relating to the Company the directors may with the approval of a resolution of a general meeting of the Company reserve a proportion not exceeding one-fourth of each future issue of share capital of the Company for exclusive offer in the first instance to gas consumers electricity consumers or employees at such price and upon such terms and conditions as to payment therefor and the payment of dividends thereon until the same become fully paid as the directors may prescribe :

Special
provision
for benefit
of small
investors.

Provided that every allotment of share capital under this section shall be at a price not less than the reserve price at which the like class of share capital of the same issue shall be offered under the provisions of section 8 (Sale of share capital by auction or tender) of this Act.

10. When any share capital is to be issued by the Company and whether any of the shares or stock of the Company are at a premium or not the Company before or in lieu of offering the same for sale by public auction or tender may with the previous approval of the Board of Trade and subject to such conditions as the Board may think fit to impose offer such share capital to the gas consumers electricity consumers or employees at not less than the average price (after due allowance made for any enhancement in price by reason of any anticipated dividend) at which according to the books of the Company sales of share capital of the same class were effected within the period of six months immediately preceding the date of application by the Company for such approval as aforesaid.

Sale of
share
capital to
employees
and
consumers
at a fixed
price.

PART II.
—cont.
Power to
borrow.

11.—(1) The Company may without the certificate of a justice borrow on mortgage of the undertaking in respect of the share capital issued by the Company before the passing of this Act any sum or sums not exceeding in the whole (when added to any money borrowed on mortgage or raised by the creation of debenture stock by the Company before the date of the passing of this Act and outstanding at the date or respective dates on which the Company exercise the powers of this subsection) two hundred and fifty-five thousand nine hundred and twenty-two pounds.

(2) The Company may also without the certificate of a justice borrow on mortgage of the undertaking in respect of the said share capital a further sum or sums not exceeding in the whole one hundred thousand pounds.

(3) The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking in respect of any share capital issued by them after the passing of this Act any sum or sums not exceeding in the whole sixty per centum of the amount (including premiums and allowing for discounts) which at the time of borrowing has been so raised but no sum shall be borrowed in respect of any such capital (other than capital raised by the issue of shares or stock allotted under the provisions of section 9 (Special provision for benefit of small investors) of this Act) until the Company have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such capital together with the premiums (if any) realised on the sale thereof has been fully paid up.

Limit of
interest on
borrowed
money.

12. The Company shall not without the consent of the Board of Trade pay interest at a higher rate than five per centum per annum in respect of any money borrowed after the passing of this Act whether on mortgage or otherwise for the purposes of the undertaking or in respect of any debenture stock issued after the passing of this Act.

Applica-
tion of
certain

13. The following provisions of the Gas Undertakings Act 1934 shall extend and apply to any share capital or debenture stock of the Company created or to

be issued or to be offered for subscription for the purposes of (a) the electricity undertaking or (b) the gas undertaking and the electricity undertaking in like manner as they extend and apply to any share capital or debenture stock of the Company created or to be issued or to be offered for subscription for the purposes of the gas undertaking (that is to say):—

PART II.
—cont.
provisions
of Gas
Under-
takings Act
1934.

Subsections (1) (2) and (3) of section 1 (Issue of share capital by undertakers);

Section 3 (Power for certain undertakers to pay underwriting commission);

Section 4 (Power for certain undertakers to issue redeemable preference and debenture stock).

14. The following provisions of the Act of 1927 shall extend and apply to and with respect to the powers of raising capital and of borrowing on mortgage and issuing debenture stock granted by this Act as if those provisions with any necessary modifications were re-enacted in this Act (that is to say):—

Applica-
tion of
provisions
of Act of
1927.

Section 19 (Debenture stock);

Section 20 (Priority of mortgages and debenture stock over other debts);

Section 21 (Priority of existing mortgages);

Section 22 (Appointment of receiver);

Section 23 (Application of moneys).

15. The Company shall not except with the consent of the Board of Trade in respect of any year declare or make out of the profits of the undertaking any larger dividend on any share capital to which a preferential dividend shall be assigned than at the rate of six pounds in respect of every one hundred pounds of such share capital.

Limitation
of dividend
on
preference
share
capital.

16.—(1) The directors may on or after the thirtieth day of June in any year without the sanction or direction of a general meeting declare and pay out of the funds of the Company applicable to dividend a dividend in respect of the half-year ended on the said thirtieth day of June on any class of share capital of the Company at such rate per centum per annum as

Half-
yearly
dividends.

PART II.
—cont.

the directors may think fit but no such rate shall as respects any ordinary share capital be greater than the rate of dividend in respect of that half-year payable in accordance with the provisions of section 25 (Dividend dependent on price of gas) of the Farnham Gas Order 1930 or as respects any preference share capital be greater than the preferential annual rate of dividend assigned to such share capital.

(2) Subject to the provisions of this Act when in respect of any such half-year as aforesaid the directors exercise the powers conferred by subsection (1) of this section the only dividend (if any) to be declared at the next following ordinary meeting on any class of share capital of the Company in relation to which such powers were exercised shall be a dividend in respect of the half-year ending next before the date of such ordinary meeting at such rate as the Company may approve not exceeding the rate of dividend requisite to enable the Company to pay in the case of ordinary share capital the balance of the dividend which can lawfully be paid in respect of the year in which such half-year occurs and in the case of preference share capital the balance of the dividend payable in respect of the year in which such half-year occurs at the preferential annual rate of dividend assigned thereto and section 120 of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be read and have effect accordingly.

Special
purposes
fund.

17.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid up capital of the Company to a fund to be called “the special purposes fund.”

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the aggregate of the paid up capital of the Company.

(4) The moneys forming the special purposes fund or any portion thereof may pending application to the purposes referred to in subsection (2) of this section be invested in investments in which trustees are authorised by law to invest or be temporarily employed for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The special purposes fund may be maintained at any amount to which it has lawfully been raised in pursuance of this section notwithstanding any subsequent reduction in the amount of outstanding loans.

(7) For the purposes of this section the expression "paid up capital of the Company" shall mean the aggregate of the amount of the capital of the Company paid up or credited as paid up of any premiums paid in respect thereof and of any moneys borrowed by the Company on mortgage or raised by the creation and issue of debenture stock and for the time being outstanding.

(8) Any moneys standing to the credit of the special purposes fund of the Company at the prescribed date shall forthwith be carried by the Company to the credit of the special purposes fund authorised by this section.

18.—(1) The directors may in any year appropriate out of the revenue of the Company arising from the gas undertaking as part of the expenditure on revenue account of such undertaking any sum not exceeding an amount equal to one per centum of the amount for the time being expended on capital account

Gas
renewal
fund.

PART II.
—cont.

of the gas undertaking to a fund to be called "the gas renewal fund."

(2) The gas renewal fund shall be applicable only to meet expenses requisite for the maintenance and renewal of gas plant and works (other than expenses incurred in the replacement or removal of plant or works) and shall be so applied from time to time for the purpose of equalising as far as may be the annual charge to revenue in respect of such expenses.

(3) The maximum amount standing to the credit of the gas renewal fund shall not at any time exceed an amount equal to five per centum of the amount for the time being expended on capital account of the gas undertaking.

Saving for
emergency
powers of
Treasury.

19.—(1) So long as this section continues in force it shall not be lawful without the consent of the Treasury to exercise the powers of borrowing or raising capital conferred by this Act.

54 & 55
Vict. c. 39.

(2) Section 113 of the Stamp Act 1891 (which in the case of any increase in the amount of nominal share capital of a company being authorised by any Act charges stamp duty on a statement of the amount of such increase to be delivered within one month from the passing of the Act) shall as amended by any subsequent enactment have effect as respects any share capital authorised to be raised by this Act as if this Act had been passed on the date when such consent as aforesaid is given as respects that capital or on the date when this section expires whichever first occurs.

2 & 3 Geo. 6.
c. 62.

(3) This section shall continue in force so long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939.

PART III.

GAS.

Re-
definition
of gas
limits.

20.—(1) The gas limits shall be and include the area described in the Second Schedule to this Act.

(2) The said limits are more particularly delineated and marked with a red verge line on a map signed in triplicate by the Right Honourable the Earl of Onslow the chairman of the committee of the House

of Lords to which the Bill for this Act was referred one copy whereof is deposited in the Parliament Office of the House of Lords one copy in the Committee and Private Bill Office of the House of Commons and one at the principal office of the Company. In the case of any difference between the said limits as described in the Second Schedule to this Act and as delineated on the said map the said map shall prevail.

PART III.
—cont.

21.—(1) The Company may charge in respect of gas supplied by them by meter in the areas set forth in the first column of the Fourth Schedule to this Act the prices mentioned in the second column of the said schedule and the provisions of this section and of the said schedule shall have effect in substitution for the powers of charge conferred by the following enactments:—

Re-
definition
of gas
differential
price
areas.

Farnham Gas Order 1926—

Section 5 (Price of gas in added limits).

Farnham Gas Order 1930—

Section 14 (Price of gas in added limits).

Farnham Gas Order 1935—

Section 19 (Price of gas in added limits and Bordon district).

(2) Any price so charged under the provisions of this section shall not be taken into account for the purposes of section 25 (Dividend dependent on price of gas) of the Farnham Gas Order 1930.

(3) In the said schedule the expression “original gas limits” means the urban district of Farnham the parish of Tilford in the rural district of Hambledon and so much of the parish of Frensham in the said rural district as immediately prior to the coming into operation of the Surrey Review Order 1933 constituted part of the Frensham Ward all in the county of Surrey.

PART IV.

ELECTRICITY.

22.—(1) The electricity limits shall be and include the area described in the Third Schedule to this Act.

(2) The said limits are more particularly delineated and marked with a red verge line on a map signed

Re-defini-
tion of
electricity
limits.

PART IV.
—cont.

in triplicate by the Right Honourable the Earl of Onslow the chairman of the committee of the House of Lords to which the Bill for this Act was referred one copy whereof is deposited in the Parliament Office of the House of Lords one copy in the Committee and Private Bill Office of the House of Commons and one at the principal office of the Company. In the case of any difference between the said limits as described in the Third Schedule to this Act and as delineated on the said map the said map shall prevail.

Re-defini-
tion of
electricity
differential
price areas.

23.—(1) The Company may charge in respect of electricity supplied by them in the areas set forth in the first column of the Fifth Schedule to this Act the price mentioned in the second column of the said schedule and the provisions of this section shall have effect in substitution for the powers of charge conferred by the proviso to section 8 (Maximum prices) of the Farnham Electricity (Extension &c.) Special Order 1927.

(2) In the said schedule the expression “original electricity limits” means the urban district of Farnham the parish of Tilford in the rural district of Hambledon and so much of the parish of Frensham in the said rural district as immediately prior to the coming into operation of the Surrey Review Order 1933 constituted part of the Frensham Ward all in the county of Surrey.

As to
maximum
power
which
may be
demanded.

24. Except in the case of electricity supplied in pursuance of any agreement the maximum electrical power with which any electricity consumer shall be entitled to be supplied by the Company shall not include any supply of electricity taken on extraordinary occasions unless such consumer shall pay to the Company such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Company in order to meet the possible maximum demand for the premises of such consumer and any question as to whether the provisions of this section apply and if so the sum so to be paid shall in default of agreement be determined by arbitration in manner provided by section 28 of the Electric Lighting Act 1882.

45 & 46
Vict. c. 56.

Sale of
electrical
apparatus
let on hire.

25. If any owner or occupier of premises who has hired from the Company any electric line fitting apparatus or appliance (in this section referred to as

“ fittings ”) sells or leaves the premises in which such fittings are fixed or fastened and the next owner or occupier of those premises desires to purchase instead of to hire those fittings the Company may notwithstanding anything contained in the Electricity (Supply) Acts 1882 to 1936 sell those fittings to such next owner or occupier upon such terms and conditions as may be agreed between him and the Company or failing agreement as may be determined by a court of summary jurisdiction to be reasonable.

PART IV.
—*cont.*

26. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new electric line for an electric line situate in or upon the private property of any electricity consumer the Company after giving forty-eight hours' notice in writing to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such electric line is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution :

Power of
entry for
substitu-
tion of
electric
lines.

Provided that the Company shall not exercise the powers of this section in respect of any premises which form part of the railway of any railway company except with the consent of such company.

27.—(1) The powers conferred on the Company by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows :—

Further
powers as
to entry
upon
premises.

(a) the premises which may be entered shall include all premises in the electricity limits in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Company ;

(b) the purposes for which premises may be entered shall include the following purposes that is to say the inspection of all meters and electric fittings on the premises whether belonging to the Company or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders

PART IV.
—cont.

applying to the Company or of any regulation or byelaw made thereunder and (where the Company are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply.

The Company shall not have any power of entry into any such premises except through an officer duly authorised by the Company who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Company to any premises which they are entitled to enter in pursuance of the said section 24 as amended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding twenty shillings for each day on which the offence is continued after conviction therefor.

(3) For the purposes of this section “electric fittings” include electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any premises (not being a dwelling-house) belonging to and used by a railway company for the purposes of their railway and forming part of any station or goods depot.

As to use
of trans-
formers.

28. Where a separate transformer is provided at the expense of the Company for the purpose of affording a supply of electricity to any electricity consumer the Company may subject to the provisions of the agreement under which the transformer was provided use such transformer for the purpose of affording a supply of electricity to other electricity consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided so however that the powers conferred by this section shall not enable the Company to extend the transformer so provided beyond the limits of the original site thereof.

PART V.**GAS AND ELECTRICITY.**

29.—(1) Where the gas limits or the electricity limits are bounded by or abut upon any street or part of a street wholly or for part of its width outside those limits the Company may for the purpose of supplying gas or electricity (as the case may be) to the owner or occupier of any premises within the gas limits or the electricity limits (as the case may be) exercise with respect to the whole width of the street or part of the street the like powers of breaking up the street for the purposes of laying maintaining inspecting repairing and renewing pipes electric lines and works (as the case may be) as are exerciseable by them with respect to streets within the gas limits or the electricity limits (as the case may be) and subject to the like conditions.

As to
streets
forming
boundary
of limits of
supply.

(2) Nothing in this section shall entitle or require the Company to supply gas or electricity to the owner or occupier of any premises outside the gas limits or the electricity limits (as the case may be).

(3) In this section “street” includes any square court or alley highway lane road thoroughfare or public passage or place.

30. When at the request and for the convenience of any gas consumer or electricity consumer the reading of any meter on any premises takes place at a time other than that of the usual periodical reading the Company may levy and recover such charges as they think fit not exceeding the sum of one shilling for each such special reading.

Charges
for special
readings of
meters.

31. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and

Persons
under
disability
may grant
easements
&c.

PART V.
—cont.

apply to such grants and to such easements rights and privileges as aforesaid respectively.

For pro-
tection of
Southamp-
ton County
Council.

32. For the protection of the county council of the administrative county of Southampton (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the Company and the council have effect:—

Section 81 (For protection of Surrey County Council) of the Act of 1910 shall so far as applicable extend and apply to the exercise of the powers conferred by section 29 (As to streets forming boundary of limits of supply) of this Act as if the said section 81 were re-enacted in this Act with the substitution of the council for the Surrey County Council.

As to
trunk
roads.
1 Edw. 8. &
1 Geo. 6.
c. 5.

33. This Act shall be deemed to be an enactment within the meaning of subsection (4) of section 3 of the Trunk Roads Act 1936 and the provisions of that subsection shall apply accordingly.

PART VI.

ADMINISTRATIVE.

Notices of
meetings.

34. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 notice of all meetings of the Company (whether ordinary or extraordinary) may (if the directors so determine) be given by letter sent by ordinary letter post to each shareholder instead of by public advertisement:

Provided that the letters giving the notice shall be directed according to the registered address or other known address of each shareholder and posted not later than seven clear days before the date of the meeting. In proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time hereby prescribed.

Voting at
general
meetings.

35.—(1) Section 76 of the Companies Clauses Consolidation Act 1845 relating to the appointment of proxies shall in its application to the Company have effect as if the following proviso were added thereto in

lieu of the proviso contained in section 2 of the Companies Clauses Consolidation Act 1888 as amended by the Companies Clauses Consolidation Act 1889 (viz.) :—

PART VI.

—cont.

51 & 52

Vict. c. 48.

52 & 53

Vict. c. 37.

“ Provided that where the shareholder is a member of a body corporate the proxy may be any member or officer of such body though not personally a shareholder in the Company.”

(2) Where a body corporate being a holder of ordinary or preference share capital to which voting rights are attached is present at a meeting of the Company by a proxy who is not a holder of share capital of the Company such proxy shall be entitled to vote for such body on a show of hands.

(3) Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any share or stock to which a preferential dividend shall be assigned.

36. At any meeting of the Company a majority of votes shall only be required to be proved if a poll be demanded at the meeting and if a poll be not demanded then a declaration by the chairman that the resolution has been carried and an entry to that effect in the book of proceedings of the Company shall be sufficient and conclusive evidence of the fact without proof of the number or proportion of votes recorded in favour of or against the resolution.

Proof of
majority of
votes only
required
when poll
demanded.

37. For the purposes of the proviso to section 29 (Directors holding office under or contracting with Company) of the Act of 1927 a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

Notice by
directors of
contracts.

38. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company have effect as if the words “or of the next succeeding meeting” were inserted

Signing of
minutes
&c.

PART VI.
—cont.

therein after the words “shall be signed by the chairman of such meeting.”

Exercise of
minor
powers
by one
director.

39. Section 95 of the Companies Clauses Consolidation Act 1845 shall be deemed to authorise the directors to appoint any one of their body as a committee for the purposes of passing transfers and sealing certificates of any shares or other securities of the Company and of executing any other minor powers exerciseable by the directors.

PART VII.

MISCELLANEOUS.

As to
recovery of
sums due
for fittings
&c.

40. If the Company commence proceedings for the summary recovery of any sum due for a supply of gas or electricity any other sum due or payable to the Company by the same consumer in respect of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or electricity or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas or electricity provided that the sum so included as aforesaid does not exceed twenty pounds in any one summons.

Authenti-
cation and
service of
notices by
Company.

41. Any notice to be served by the Company on a person supplied with gas or electricity shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any

notice not being a notice to pay any charge be sufficient, to affix such notice or a copy thereof upon some conspicuous part of such premises. PART VII.
—cont.

42. The Company may provide maintain and equip grounds for games sports or recreation for the use of employees and may acquire or take on lease for that purpose any lands in addition to any other lands which they are or may be authorised to acquire by agreement. Recreation
ground for
employees.

43. The following enactments are hereby repealed as from the date of the passing of this Act:— Repeal.

The Act of 1910—

- Section 26 (New shares to be sold by auction or tender);
- Section 30 (Power to create a special purposes fund);
- Section 88 (Authentication and service of notices by Company).

The Farnham Gas Order 1922—

- Section 17 (Limit of dividend on authorised preference capital).

The Farnham Gas Order 1926—

- Section 5 (Price of gas in added limits);
- Section 11 (Limit of dividend on preference capital).

The Farnham Electricity (Extension &c.) Order 1927—

- Section 15 (Limit of dividend on authorised preference capital).

The Act of 1927—

- Section 15 (As to notice of sale by auction);
- Section 16 (Provisions as to payment of commissions on sale of capital);
- Section 24 (Redeemable preference shares or stock and debenture stock).

PART VII.
—cont.**The Farnham Gas Order 1930—**

Subsection (2) of section 14 (Price of gas in added limits);

Section 18 (Limit of dividend on preference capital).

The Farnham Gas Order 1935—

Subsection (2) of section 19 (Price of gas in added limits and Bordon district);

Section 23 (Special provision for benefit of small investors);

Section 25 (Limit of interest on borrowed money);

Section 39 (As to streets forming boundary of limits of supply).

**Costs of
Act.**

44. All the costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

STATEMENT OF SHARE CAPITAL.

Description of capital.	Rates of dividend authorised.	Nominal amount of shares.	Paid up.	Unissued.	Authorised.
			£ s. d.	£ s. d.	£ s. d.
Original ordinary -	7% with sliding scale	£ 10	19,200 0 0		
Additional ordinary -	7% with sliding scale	10	177,130 0 0		
Original preference -	5%	10	10,000 0 0	Nil	458,170 0 0
Additional preference -	5%	10	52,760 0 0		
Additional preference -	6%	10	139,500 0 0		
	Premiums (less discounts)		398,590 0 0		
			59,580 0 0		
			£458,170 0 0		£458,170 0 0

1st Sch.
—cont.

STATEMENT OF LOAN CAPITAL.

Description of loan.	Rates of interest.	Borrowed.	Unissued.	Authorised.
	£ s. d.	£ s. d.	£ s. d.	£ s. d.
Perpetual debenture stock - - -	4 0 0	72,525 0 0	2,191 0 0	255,922 0 0
Perpetual debenture stock - - -	5 0 0	141,206 0 0		
Redeemable 1952/62 - - -	3 15 0	40,000 0 0		
		£253,731 0 0	£2,191 0 0	£255,922 0 0

THE SECOND SCHEDULE.

GAS LIMITS.

In the county of Surrey—

The urban district of Farnham.

In the rural district of Hambledon—

The parishes of Docketfield.

Frensham (except so much thereof as lies to the south of a line drawn twenty-five yards north of the middle line of the road from Thursley to Headley via Marchant Farm Green Cross and the Crossways Inn).

Tilford.

In the county of Southampton—

The urban district of Alton.

In the rural district of Alton—

The parishes of Bentley.

Bentworth.

Binsted.

Chawton.

East Tisted.

Farringdon.

Four Marks.

Froyle.

So much of the parish of Grayshott as immediately prior to the coming into operation of the Grayshott and Headley Order 1920 formed part of the parish of Headley.

The parishes of Headley.

Kingsley.

Lasham.

Medstead.

Newton Valence.

Ropley.

Selborne.

Shalden.

West Tisted.

Whitehill.

Worldham.

2ND SCH.
—cont.

In the rural district of Hartley Wintney—

So much of the parish of Crondall as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed parts of the parishes of Bentley and Froyle.

So much of the parish of Long Sutton as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed part of the parish of Froyle.

In the rural district of Petersfield—

The parishes of Bramshott (except so much thereof as lies to the east of an imaginary line commencing at the point where the road leading from Bridge Farm Linchmere Common to Hewshott House is intersected by the boundary between the counties of West Sussex and Southampton thence proceeding in a north-westerly direction along the said road to Hewshott House aforesaid thence continuing along the road from Hewshott House in a north-easterly direction past Hewshott Hill Farm thence in a north-westerly direction to the main Portsmouth Road thence in a north-easterly direction along the said main road to the Seven Thorns Public House thence continuing in a northerly direction along the east side of the footpath leading from the said public house to Chase Farm and thence along the east side of the road from Chase Farm to the boundary between the counties of Surrey and Southampton and there terminating.

Colemore and Priors Dean.

Froxfield (except so much thereof as lies to the south-west of an imaginary straight line drawn from the point on the boundary of that parish thirty yards south-west of the point where that boundary

crosses the southern side of Filmorehill Lane to the point where the western boundary of the Southern Railway (Meon Valley Line) crosses the southern boundary of that parish).

2ND SCH.
—cont.

Greatham.

Hawkley.

Liss.

In the county of West Sussex—

In the rural district of Midhurst—

The parish of Rogate.

THE THIRD SCHEDULE.

ELECTRICITY LIMITS

In the county of Surrey—

The urban district of Farnham.

So much of the urban district of Haslemere as is situate to the north of an imaginary line drawn one hundred yards south of and parallel to the road from Thursley to Headley via Marchant Farm and Green Cross.

In the rural district of Hambledon—

The parishes of Dockenfield.

Frensham (except so much thereof as lies to the south of an imaginary line drawn one hundred yards south of and parallel to the road from Thursley to Headley via Marchant Farm Green Cross and Kitt's Farm).

Tilford.

In the county of Southampton—

In the rural district of Alton—

The parish of Bentley.

So much of the parish of Binsted as lies to the east of an imaginary line drawn from Anstey Bridge near the village of Bentley in a south-easterly direction along the west side of the road from Bentley to

3RD SCHEDULE
—cont.

Black Nest for a distance of five hundred yards or thereabouts to the railway bridge at Bentley Junction thence in a general southerly direction along the east side of the Bentley and Bordon Light Railway to the boundary of the said parish.

The parish of Froyle (except so much thereof as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed parts of the parishes of Neatham and Holybourne).

In the rural district of Hartley Wintney—

So much of the parish of Crondall as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed parts of the parishes of Bentley and Froyle.

So much of the parish of Long Sutton as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed part of the parish of Froyle.

THE FOURTH SCHEDULE.

GAS DIFFERENTIAL PRICES.

Local government areas wholly or partly
comprised in gas limits.

Differential price.

In the county of Surrey—

In the rural district of Hambledon—

So much of the parish of Frensham as immediately prior to the coming into operation of the Surrey Review Order 1933 constituted the Churt Ward and as lies to the north of a line drawn twenty-five yards north of the middle line of the road from Thursley to Headley via Marchant Farm Green Cross and the Crossways Inn.

Price may exceed by not more than one penny per therm the price for the time being charged in the original gas limits.

Local government areas wholly or partly
comprised in gas limits.

Differential price.

4TH SCH.
—cont.

In the county of Southampton—

In the rural district of Alton—

The parishes of—

Bentley.

Bentworth.

So much of the parish of Binsted as lies to the west of a line drawn from Anstey Bridge near the village of Bentley in a southeasterly direction along the west side of the high road to the railway bridge at Bentley Junction thence in a general southerly direction along the east side of the Bentley and Bordon Light Railway to the boundary of the said parish.

The parishes of—

East Tisted.

Farringdon.

So much of the parish of Four Marks as immediately prior to the coming into operation of the County of Southampton Review Order 1932 formed part of the parishes of Chawton East Tisted Farringdon Medstead Newton Valence and Ropley.

The parish of Froyle.

So much of the parish of Grayshott as is within the gas limits.

The parishes of—

Headley.

Kingsley.

Lasham.

Medstead.

Newton Valence.

Ropley.

Selborne.

Shalden.

West Tisted.

Whitehill.

Worldham.

Price may exceed by not more than three pence per therm the price for the time being charged in the original gas limits.

4TH SCH.
—cont.Local government areas wholly or partly
comprised in gas limits.

Differential price.

In the rural district of Hartley
Wintney—So much of the parishes of Crondall
and Long Sutton as is within
the gas limits.

In the rural district of Petersfield—

So much of the parish of Bramshott
as is within the gas limits.The parish of Colemore and Priors
Dean.So much of the parish of Froxfield
as is within the gas limits.

The parishes of—

Greatham.

Hawkley.

Liss.

In the county of West Sussex—

In the rural district of Midhurst—

The parish of Rogate.

Price may ex-
ceed by not
more than
three pence per
therm the price
for the time
being charged
in the original
gas limits.

THE FIFTH SCHEDULE.

ELECTRICITY DIFFERENTIAL PRICES.

Local government areas wholly or partly
comprised in electricity limits.

Differential price.

In the county of Surrey—

In the rural district of Hambledon—

The parish of Dockenfield.

So much of the parish of Frensham
as immediately prior to the
coming into operation of the
Surrey Review Order 1933
formed parts of the Churt and
Hindhead Wards and as lies to
the north of an imaginary line
drawn one hundred yards south
of and parallel to the road from
Thursley to Headley via Mar-
chant Farm Green Cross and
Kitt's Farm.So much of the urban district of
Haslemere as is within the elec-
tricity limits.Prices may ex-
ceed by not
more than
ten per centum
the prices for
the time being
charged for
a correspond-
ing supply
within the
original elec-
tricity limits.

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*Farnham Gas and
Electricity Act, 1940.*

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Local government areas wholly or partly
comprised in electricity limits.

Differential price.

5TH SCH.
—cont.

In the county of Southampton—

In the rural district of Alton—

The parish of Bentley.

So much of the parishes of Binsted
and Froyle as is within the
electricity limits.

In the rural district of Hartley
Wintney—

So much of the parishes of Crondall
and Long Sutton as is within
the electricity limits.

Prices may ex-
ceed by not
more than
ten per centum
the prices for
the time being
charged for
a correspond-
ing supply
within the orig-
inal electricity
limits.

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***Farnham Gas and
Electricity Act, 1940.***

3 & 4 GEO. 6.

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